

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 23-003

**Amendments to Title 8, Chapter 2 Section 8-204 of the Chickasaw Nation Code
(Filing Fee; Voter Lists)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature reviews the Election Rules and Regulations on an annual basis and desires to amend Title 8 of the Chickasaw Nation Code.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 8, Chapter 2, Section 8-204 of the Chickasaw Nation Code (additions and changes of case are shown in red, deletions are stricken through):

"SECTION 8-204 FILING FEE; VOTER LISTS.

- A. The filing fee for offices of the Nation shall be:
1. Legislative Candidate: \$ 500~~250~~.00;
 2. Judicial Candidate: \$ 500~~250~~.00;
 3. Gubernatorial Candidate Team: \$ 1,500~~000~~.00.

SECTION 8-204 FILING FEE; VOTER LISTS.

BA. The filing fee shall be paid by cashier's check or postal money order and payable to the Chickasaw Election Commission. A copy of such this fee payment shall be kept and made available for public inspection at the office of the Election Secretary/Tribal Registrar.

CB. The Election Secretary/Tribal Registrar shall have each Candidate who files for office sign a statement that there shall be no return of their filing fee once the Candidate is deemed qualified. If a Candidate is found to have provided inaccurate information on the Declaration of Candidacy and is later deemed unqualified, the filing fees will not be returned. Such fees are used to help defray the expenses that are incurred in conducting the elections. A

report detailing fees and costs will be given to the Executive and Legislative Departments within thirty (30) days of the conclusion of the election process.

DE. Upon filing a Declaration of Candidacy and payment of fees, a Candidate shall receive a packet including disclosure statements, a Candidate information sheet, a biography form, a copy of Current election rules and regulations and a copy of the Constitution.

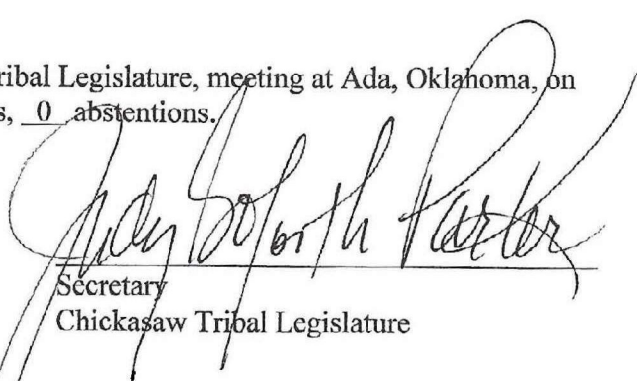
ED. Qualified Candidates and Candidate/teams shall each receive a computer printout, CD ~~diskette~~ and adhesive labels of the Voters List for the district or districts for which they are a Candidate. Such list shall contain, only, each Voter's name, address and zip code, in zip code order, and shall be available on the Wednesday following the date that the filing period for Candidates officially closes. At that time, Candidates may compare their lists to the master list of their District(s) for accuracy. All qualified Candidates receiving such list shall, on the afternoon of the day after Voter registration closes, receive a list of the qualified Voters who were added up to the time registration closed. There shall be no additional charge for the updated list. All such CDs ~~diskettes~~ shall be formatted for operation in IBM compatible computers and current software ~~using Windows 3.1 or Windows 95 or Current.~~

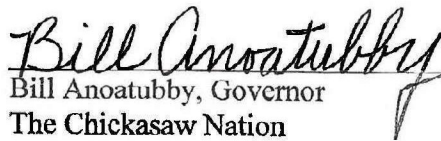
FE. Eligible Candidates shall receive another set of updated adhesive labels of the Voters List for the district or districts for which they are a Candidate for any runoff election.

GF. The Election Secretary/Tribal Registrar shall personally review all Voters Lists, CDs ~~computer diskettes~~ and adhesive labels to insure that all Candidates are treated fairly and equitably with regard to Voter Lists and Voter information. Each Voters List distributed within a particular district shall be identical to others distributed within that district in the interest of fairness to a Candidate."

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on March 17, 2006, by a vote of 7 ayes, 3 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: MAR 17 2006

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(Filing Fee; Voter Lists)

Explanation: This resolution amends Section 8-204 of the Chickasaw Nation Code regarding filing fees and Voter Lists.

Requested By: Steve Woods, Chairman
Election Rules and Regulations Ad Hoc Committee

Presented By: Steve Woods, Chairman
Election Rules and Regulations Ad Hoc Committee